

AN ORDINANCE CREATING THE BIÑAN LOCAL COMMITTEES AGAINST SQUATTING SYNDICATES AND PROFESSIONAL SQUATTERS (BLCASSPS)

WHEREAS, The local government units ,in cooperation with the Philippine National Police, the Presidential Commission for the Urban Poor (PCUP) ,and the (PCUP)-accredited urban poor organization in the area; shall adopt measures to identify and effectively curtail the nefarious and illegal activities of professional squatters and squatting syndicates as provided for under Section 27 , R.A. 7279 (Urban Development and Housing Act of 1992).

WHEREAS, This is a great need in establishing An Institutional Mechanism To Curtail the Activities of Professional Squatting Syndicates and Professional Squatters and Intensifying the Drive Against Them. Executive Order No.129, dated October 15, 1993.

WHEREAS, Instituting the National Drive To Suppress And Eradicate, Professional Squatting And Squatting Syndicates, shall be in accordance with the Amended Executive Order Nos.178 And 129,And for other Purpose; Section 9,Chapter II, Implementing Guidelines of Executive Order no. 153.

NOW THEREFORE, BE IT ORDAINED by the Sangguniang Panlungsod of Biñan,Laguna in session assembled:

CITY ORDINANCE_____

SECTION 1. TITLE. THIS ORDINANCE SHALL BE KNOWN AS THE "BIÑAN LOCAL COMMITTEE AGAINST SQUATTING SYNDICATES AND PROFESSIONAL SQUATTERS"IN COOPERATION WITH THE PRIVATE SECTOR AND VARIOUS NATIONAL GOVERNMENT AGENCIES CONCERNED.

SECTION 2. The BLCASSPS shall be compose of, but not limited to the following:

1. The Mayor of the city or municipality who shall serve as Chairman with permanent alternate;

2. Sangguniang Panglunsod- Committee/Chairman on Urban Poor and Housing

3. The local Chief of PNP with permanent alternate;

4. The representative of the PCUP with permanent alternate;

5. The President of the PCUP-accredited urban poor organization with permanent alternate;

6. The duly designated or deputized representative of HUDCC;

7. The President of the *Liga ng mga Barangay* of the city;

8. The representative from the private sector who shall be chosen by the above members.

SECTION 2. Powers and Functions

1. Adopt the necessary measures to identify and effectively curtail the activities of professional squatters and squatting syndicates, including the names of public officials and/or private individuals or entities suspected of abetting or tolerating the commission of said acts;

2. Provide the Housing and urban Development Coordinating Council (HUDCC) and the National Housing Authority (NHA) copies of the list of identified professional squatters and squatting syndicates in order to safeguard against their inclusion in future government housing programs/projects and recommend their disqualifications in existing programs;

3. Provide legal assistance to victims of professional squatters and squatting syndicates, giving priority to small property owners, and make available, through the PNP and the DOJ, a consolidated list of professional squatters and squatting syndicate;

4. File or assist the complainant in filing the appropriate charges before the Prosecutor's office;

5. Undertake investigation of cases of violation of laws or rules on eviction and demolition forwarded to it and recommend appropriate actions on the same to the concerned agencies;
6. Monitor eviction and demolition activities and establish its own monitoring system;
7. Submit reports to the Housing and Urban Development Coordinating Council (HUDCC) and to the Office of the President, copy furnished the concerned agencies ;
8. Request for assistance from any government entity, if necessary;

SECTION 3. Effectivity . This ordinance shall take effect immediately upon approval hereof.

UNANIMOUSLY APPROVED.

